Showing contexts for: **divorce petition** in Sandip Shankarlal Kedia vs Pooja Kedia on 29 April, 2013

Context size: Small | Current | Large | Larger

28. It is contended on behalf of the husband that the action by the wife even otherwise totally lacks bonafides and is made as a counterblast. The husband initially sued to obtain a travel-ban order against the wife in respect of his child on 1 st March, 2012.

He sued for **divorce** and applied to the Family Reform Department as is the mandatory requirement prior to the Court taking up the **divorce petition**, on 8th March, 2012. This application came to be served upon the wife on 18 th March, 2012. The wife issued a general power of attorney to her Advocates to appear on her behalf (though she failed to appear herself) on 19th March, 2012. She was summoned to appear before the Family Reform Department on 25th March, 2012. She failed to appear. That was in Application No.64 of 2012. Upon such failure reconciliation could not take place and as per the Personal Status Law the matter went to Court as Reference No.65 of 2012. The wife filed her **petition** in Mumbai on 3 rd April, 2012. The husband filed his **divorce petition** for want of reconciliation on 26th April, 2012 / 1st May, 2012. Both parties contend that their application was filed first and hence the other application need not be pressed until their application is decided. A chronology of the aforesaid events read alongside the aforesaid rule requiring the first summons to be issued for reconciliation before any **divorce** proceeding can be initiated under Article 16 read with Article 117(2) of the Personal Status Law, 2005 shows the first application of the husband. In any event a travel-ban application itself initiated legal proceedings 57 WP.2636/2013-judgment between the parties at least qua their child, but which has effected both the mother and the child as has been

claimed by the mother herself. The wife's **petition** for judicial separation, filed through her constituted attorney in India, whilst she continued to live in Dubai may be considered by the Family Court, Mumbai separately and independently or may rest upon the husband's **petition** for **divorce** being heard and disposed of in which case it, by its very nature, would become infructuous. The Court would refrain itself from granting the anti-suit order claimed by her on the ground alleged.

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31. What would be the interest of justice has also been relied upon by him from the same thesis.

32. Mr. Lalwani would contend that interest of justice would mean that the husband filed and prosecuted his **divorce petition** in Mumbai whilst the wife continues to live in Dubai because the wife has filed her **petition** for judicial separation in Mumbai in which the jurisdiction of the Family Court Mumbai is upheld so that there would be no multiciplicity of proceedings. He could also contend that it would not be oppressive and more convenient for the wife to attend Court in Mumbai rather than in Dubai where she lives and, of course, the Hindu Law applicable to both the parties would be applied more appropriately and conveniently by the Court in Mumbai. He would also contend that it would be against her interest that the husband prosecutes his **divorce petition** in Dubai though he would defend her **petition** for judicial separation in Mumbai. It is very inconvenient because she would have to get her affidavits and proceedings affirmed before the various authorities and obtain translations and the Court there would not fully comprehend the Hindu Law applicable to both the parties.

The refusal of **divorce** may allow her to proceed for judicial separation as per her own prayer.

34. The wife can hardly be heard to contend that the choice of her country is inconvenient only when it comes to the jurisdiction of the Courts.

35. Mr. Lalwani also contended that the filing of the **divorce petition** is an abuse of process because it is made only to harass the wife. This can also hardly be countenanced in view of the fact that the marriage of the parties had completely broken down, even the child of the parties was not made available to the father in India, the father had to go as far as Dubai to obtain access to his child. The **divorce petition** under those circumstances would only be expected.

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40. With regard to the vexation and oppressiveness claimed by the wife Mr. Lalwani would argue that these apply to oppressive procedures in the foreign court for a party with no substantial connection with such jurisdiction, bad faith in the institution of the proceedings, extreme inconvenience caused by those proceedings, multiplicity of actions where the action would spawn further consequential litigation which might not be reconcilable with the foreign decision and proceedings which would undermine the control of the Court's process in India, based upon this commentary also arising out of English decisions some of which have been considered in the case of Modi Entertainment (supra). It is contended that these proceedings filed with bad faith would be opressive and inconvenient, which, it is seen, they are not. No other action which would emanate from the **divorce petition** is shown except that the wife herself has filed a **petition** for declaring husband a lunatic in the Dubai Court after the **divorce petition** is filed (page 588).